

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1515

By: Jenkins

AS INTRODUCED

An Act relating to elections; amending 26 O.S. 2021, Section 14-105, as amended by Section 1, Chapter 292, O.S.L. 2022 (26 O.S. Supp. 2024, Section 14-105), which relates to applications for absentee ballots; requiring statement listing reason why voter cannot vote in person on election day; directing certain registered voters to indicate date for which they are requesting an absentee ballot; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 14-105, as amended by Section 1, Chapter 292, O.S.L. 2022 (26 O.S. Supp. 2024, Section 14-105), is amended to read as follows:

Section 14-105. A. Any registered voter may apply for an absentee ballot in person at the county election board, by United States mail, by facsimile device as defined in Section 1862 of Title 21 of the Oklahoma Statutes or by a means of electronic communication designated by the Secretary of the State Election Board. The Secretary of the State Election Board shall prescribe a

1 form to be used for the application, although any application
2 setting forth substantially the same facts shall be valid.

3 B. 1. A registered voter applying for an absentee ballot by
4 means of electronic communication shall provide his or her name,
5 birth date, an identification number, and other information as may
6 be prescribed by the Secretary of the State Election Board. The
7 name, birth date, and identification number provided on the
8 application must match the name, birth date, and identification
9 number in the voter registration record in order to apply for an
10 absentee ballot pursuant to this subsection.

11 2. If the voter does not recall which identification number he
12 or she included in the voter registration record, the voter may
13 provide multiple identification numbers, at least one of which must
14 match the identification number in the voter registration record if
15 such record included an identification number. If the name, birth
16 date, or any identification number provided does not match the voter
17 registration record, the voter shall be informed of the failure to
18 match the voter registration record and shall be provided
19 information and instruction to contact the county election board.

20 3. If the voter registration record on file with the county
21 election board does not contain a birth date or identification
22 number, the voter shall not be eligible to apply for an absentee
23 ballot by means of electronic communication but may apply for an
24 absentee ballot pursuant to subsection C of this section.

1 4. Identifying information such as birth date and
2 identification number shall not be modified online in an existing
3 voter registration except as provided in Section 4-109.4 of this
4 title.

5 5. No later than January 1, 2023, a registered voter applying
6 for an absentee ballot pursuant to this subsection who meets the
7 criteria provided in Section 7-115.1 of this title shall be required
8 to confirm his or her address prior to submitting an application for
9 absentee ballot by means of electronic communication.

10 6. Registered voters applying for an absentee ballot by any
11 means must also provide a statement declaring why they are unable to
12 vote either early in-person absentee or on election day due to work,
13 school, or travel. The Secretary of the State Election Board shall
14 prescribe a form to be used for the statement required by this
15 paragraph. Failure to submit this statement will result in the
16 denial of the application.

17 C. 1. A registered voter applying for an absentee ballot in
18 person, by United States mail, or by facsimile device shall provide
19 his or her name, birth date, an identification number, and other
20 information as may be prescribed by the Secretary of the State
21 Election Board. The name, birth date, and identification number
22 provided on the application must match the name, birth date, and
23 identification number in the voter registration record.

1 2. If the voter does not recall which identification number he
2 or she included in the voter registration record, the voter may
3 provide multiple identification numbers, at least one of which must
4 match the identification number in the voter registration record if
5 such record included an identification number. If the voter
6 registration record does not contain a birth date or an
7 identification number, the absentee ballot application shall be
8 accepted without a match of a birth date or an identification
9 number.

10 D. For purposes of this section, "identification number" means
11 a number submitted on the registration application pursuant to
12 paragraph 3 of subsection A of Section 4-112 of this title.

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 14-103.1 of Title 26, unless
15 there is created a duplication in numbering, reads as follows:

16 A registered voter who requests an absentee ballot pursuant to
17 the provisions of Title 26 of the Oklahoma Statutes, unless
18 otherwise permitted by federal or state law, shall indicate on the
19 application the election date for which the absentee ballots are
20 requested. The application shall only be valid for the elections
21 held on that election date in which the voter is eligible to vote.

22 SECTION 3. This act shall become effective November 1, 2025.
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